

COMBINED SYNOPSIS/SOLICITATION

This is a combined synopsis/solicitation for commercial products or commercial services prepared in accordance with the format in subpart 12.6, as supplemented with additional information included in this notice. This announcement constitutes only solicitation; proposals are being requested and a written solicitation will not be issued.

Request for Quote (RFQ): Solicitation Number W569QE-26-Q-0005

Title: Task Force Guardian 211th Military Police (MP) Battalion (BN) Expeditionary Office Space Edinburg, TX

This is a solicitation request under RFQ number **W569QE -26-Q-0005** for commercial items prepared in accordance with the format in the RFO Federal Acquisition Regulation (FAR) Subpart 12.6, using Simplified Acquisition Procedures for Certain Commercial Products and Commercial Services found at RFO FAR 13.5, as supplemented with the additional information included in this notice. This solicitation documents and incorporates provisions and clauses for commercial items in effect through Federal Acquisition Circular **FAC 2026-01** effective **13 March 2026**. It is the responsibility of the contractor to be familiar with the applicable clauses and provisions. Clauses may be accessed in full text at these addresses: <https://www.acquisition.gov/browse/index/far> and <http://www.acq.osd.mil/dpap/dars/dfarspgi/current/index.html>.

DESCRIPTION OF REQUIREMENT:

The 922nd Contracting Battalion, under the 410th Contracting Support Brigade, intends to award a Firm-Fixed-Price (FFP) contract for Modular Office Trailer in Edinburg, Texas (TX). This acquisition will be a total 100% Small business set-aside. The NAICS code is 531120 – Lessors of Nonresidential Buildings except Miniwarehouses). This is a competitive Firm-Fixed Price (FFP) requirement.

Attachment List

Attachment A_ PWS_ Modular Office Trailer_ Edinburg TX

Attachment B_ Price Schedule

Attachment C_ Wage Determination _2015-5245 (DEC 3, 2025)

Period of Performance (PoP)

Performance Period	Start Date	End Date
Base Period	01 JUL 2026	30 JUN 2027
Option 1	01 JUL 2027	30 JUN 2028
Option 2	01 JUL 2028	30 JUN 2029
Option 3	01 JUL 2029	30 JUN 2030
Option 4	01 JUL 2030	30 JUN 2031
52.217-8	01 JUL 2031	31 JAN 2032

ADDENDUM TO 52.212-1, INSTRUCTIONS TO OFFERORS – Commercial Items

In addition to the following addendum, all terms, and conditions of RFO FAR provision 52.212-1, Instructions to Offerors-Commercial Products and Commercial Services, applies to this acquisition. The following have been tailored to this procurement and are hereby added via addendum:

1. **General Information.** This requirement is solicited as a 100% small business set-aside. The offeror's quote shall be submitted electronically by the date and time for receipt of offers indicated in the solicitation. These instructions prescribe the format for the quotation and describe the approach for the development and presentation of your information. These instructions are a guide for preparing your quotation. These instructions generally describe the type and extent of information you should provide and emphasize the significant topic areas you should address in your offer. Offerors are expected to review the Performance Work Statement (PWS) contained in this Request for Quote (RFQ) for further insight into the areas that your quote must address. Offerors shall include in the quote sufficient information to enable the evaluators to determine your understanding of the requirements in each of the evaluated areas.
The quotation shall be clear, concise, and shall include sufficient detail for effective evaluation and for substantiating the validity of stated claims. The quote should not simply rephrase or restate the Government's requirements but rather shall provide convincing rationale to address how the contractor intends to meet these requirements. Offerors shall assume that the Government has no prior knowledge of their experience and will base its evaluation on the information presented in the quotation. Elaborate brochures or documentation, binding, detailed artwork, or other embellishments are unnecessary and are not desired.
2. **Negotiations:** The Government intends to evaluate quotes and award without negotiations (except clarifications as described in RFO FAR 15.306(a)). Therefore, the initial offer should contain your best terms from a technical and price standpoint. However, the Government reserves the right to make clarification or request revised responses if later determined by the Contracting Officer to be necessary. The Government may reject any or all responses if such action is in the public interest and/or waive informalities and minor irregularities in your submitted offer. By responding to this RFQ and submitting a quote in response to the RFQ, the offeror understands that the Government will not be liable for any costs incurred by the offeror in response to this RFQ.

POCs for this acquisition are:

SSG Harwood/ SFC McKinney
410th Contracting Support Brigade
4130 Stanley Road, Bldg. 1000
JBSA, Fort Sam Houston, TX 78234
Fort Campbell, KY 42223

SSG Harwood: tameka.t.harwood.mil@army.mil
SFC McKinney: catherine.r.mckinney@army.mil
MAJ Fleming: spenser.e.fleming.mil@army.mil
SSG Barnett: lamar.t.barnett.mil@army.mil
SSG Gillium: jarrett.m.gillium.mil@army.mil

3. **Solicitation questions:** Offerors may email questions regarding this solicitation to the Contracting Specialist, SSG Tameka Harwood at tameka.t.harwood.mil@army.mil and CC: SFC Catherine McKinney at catherine.r.mckinney.mil@army.mil. The Government will answer all questions provided that the questions are received by **12:00PM Central Daylight Time (CDT) on 06 MAY 2026**. A summary of questions received, and Government responses will be provided via Solicitation Amendment posted on SAM.gov. Questions received after the deadline may not be answered. Accordingly, Offerors are encouraged to carefully review all solicitation requirements and submit questions to the Government early in the offer cycle.
 4. **Site Visit: 10:30AM Central Daylight Time (CDT) on 01 MAY 2026**
Address: U.S. Border Patrol Sector HQ at 4400 South Expressway 281, Edinburg, TX 78542 (see attachment A for picture of location) ****Note Site Visit is not mandatory****
<https://maps.app.goo.gl/Pik8XDg7TqUyhqjD9>
 5. **Acceptance:** Quotes are due no later than **12:00 PM Central Daylight Time (CDT) on 13 MAY 2026**. Late offers may not be considered.
 6. It is the responsibility of the offeror to ensure quotations are received and acknowledged by the Contracting Specialist, SSG Tameka Harwood and the Contracting Officer, SFC Catherine McKinney on or before the deadline for submission of quotes. **Quotes must be valid for 90 days.**
 7. System for Award Management: Unless exempted by an addendum to this solicitation, by submission of an offer, the offeror acknowledges the requirement that a prospective awardee shall be registered in the SAM database prior to award, during performance and through final payment of any contract resulting from this solicitation. If the Offeror does not become registered in the SAM database in the time prescribed by the Contracting Officer, the Contracting Officer will proceed to award to the next otherwise successful registered Offeror. Offerors may obtain information on registration and annual confirmation requirements via the SAM database accessed through <https://www.sam.gov>.
- Once the solicitation is posted potential offerors are responsible to monitor SAM.gov until the closing date for any issued amendments.
8. The clause at Revolutionary FAR Overhaul (RFO) FAR 52.212-4, Contract Terms and Conditions -- Commercial Items, applies to this acquisition.
 9. It is the contractor's responsibility to review all applicable provisions and clauses associated with this solicitation prior to submitting their quote. Clauses can be obtained at www.acquisition.gov.
 10. Monthly invoicing is acceptable for work completed; no other forms of contract financing are permitted in the acquisition

11. The Defense Priorities and Allocations System (DPAS) and assigned rating is not sued for this requirement.
12. Procurement Integrated Enterprise Environment (PIEE) and Wide Area Workflow (WAWF) Registration: Contractors MUST also be actively registered in PIEE with the appropriate roles in WAWF in order to submit invoices and receive payment. Paper copies will not be accepted. Registration can be completed at <https://piee.eb.mil>.
13. **Format and Contents:** The offeror's quotation shall consist of four (4) volumes. The **Volumes are I – Technical Capability, II – Price, III – Past Performance, IV – Solicitation Documents**. Files shall not contain classified data. The use of hyperlinks in offers is prohibited. Offerors are cautioned that “parroting” of the technical requirements or the PWS with a statement of intent to perform does not reflect an understanding of the requirement or capability to perform. Offerors are responsible for including sufficient details to permit a complete and accurate evaluation of each offer. Proprietary information shall be clearly marked.

Each volume shall be submitted as a separate electronic file. All the quotation files shall be provided in their native format, i.e. doc, xls, ppt, etc., and. Zip disks are not permitted. Files with signatures shall be in read-only format, using PDF files. All price breakdown information to aide in the price evaluation shall be submitted in Microsoft Office Excel Read/Write format and viewable in Microsoft Excel. Self-extracting Exel files are not acceptable.

The following volumes shall be submitted:

Volume	Title	Digital Copies	Maximum number of Pages
I	Technical Capability	1	10
II	Price	1	Completed Price Schedule
III	Past Performance	1	5
IV	Solicitation Documents	1	NA

*NOTE: Pages that exceed the required page limitations will not be evaluated. Additional pages over the maximum allowed will be removed or not read and will not be evaluated by the Government. All information shall be confined to the appropriate file/volume. The offeror shall confine submissions to essential matters, sufficient to define the offer in a concise manner, to permit a complete and accurate evaluation of each offer. Each file of the offer shall consist of a Table of Contents and Narrative negotiations. The Table of Contents and Cover Pages are not included in the page count. Proprietary information shall be clearly marked. The following shall be included in the Narrative negotiations

Volume I – Technical Capability. For the Technical Acceptability Factor, your offer shall be limited to no more than ten (10) pages. Technical Acceptability shall describe your approach to the identified tasks; your plan to meet the requirements as described in the PWS. **The Offeror shall explicitly specify the required lead time for the delivery and setup of the modular office**

trailer. This lead time shall be expressed in calendar days and shall commence upon Contract Award. The Government's maximum acceptable lead time is 30 calendar days. No pricing shall be included in your technical volume.

Volume II – Price. The offeror shall fully complete the Price Schedule (B08 Price Schedule). It shall contain the prices for all the listed CLINs and Option Years. The total price for each performance year shall incorporate the price of all contract requirements, PWS requirements, tasks and deliverables. The offeror shall submit pricing information to support the completeness and reasonableness of their proposed prices. Information shall also be segregated by the performance periods and the total price for each CLIN as specified in the solicitation.

The attached Price Schedule must be submitted fully completed and free of errors. It shall include the vendor's pricing in USD for all established CLINs. Vendors shall provide pricing for the Base Period, Option Period One, Option Period Two, Option Period Three, Option Period Four, and the Tear-Down and Removal of the Modular Office Trailer. Note that the FAR 52.217-8 six-month option to extend services is calculated using 50% of the estimated price for Option Period Four.

Vendors shall indicate how long the quote is valid, as a minimum the quote shall be valid for 90 days.

Volume III – Past Performance. The Past Performance evaluation will be accomplished by reviewing aspects of an Offeror's recent and relevant Past Performance, focusing on and targeting performance which is relevant to the effort of this requirement.

The offeror is requested to submit the Past Performance Questionnaire in Volume III, along with their quote by the closing date of this RFQ, to the Contract Specialist, CC; the Contracting Officer at the email addresses listed above.

The offeror shall include documentation regarding their recent and relevant past performance as it directly relates to the work being procured under this solicitation. The offeror SHALL NOT go back farther than five (5) years - for the submitted data. The past performance data shall document a successful history of past contract performance.

The offeror should submit a maximum of three (3) Past Performance Questionnaires with their responses to the solicitation.

Volume IV - Solicitation Documents. Each offeror shall complete (fill-in and sign) the solicitation sections indicated below using the file (without modification to the file) provided with the RFQ. An authorized official of the firm shall sign the Combined Synopsis/Solicitation at the end of this document, all solicitation amendments, and all certifications requiring original signature. An Acrobat PDF file shall be created to capture the signatures for submission.

1) Combined Synopsis/Solicitation.

- 2) If Representations and Certifications are completed and up to date in SAM.gov, then Solicitation provisions incorporated by reference are not required.

NOTE: If offeror has not completed the annual representations and certifications electronically on the System for Award Management (SAM) website, the offeror shall complete Representations and Certification (FAR 52.212-3)

BASIS FOR AWARD

ADDENDUM TO RFO FAR 52.212-2 EVALUATION – Commercial Items

Evaluation Factors

- 14. Basis of Contract Award:** The award will be based on the **lowest price technically acceptable (LPTA)** evaluated price of proposals received that meet, or exceed, the acceptable standards of the non-price factors identified in the solicitation. All proposals will be evaluated for technical acceptability. The Government intends to award this requirement without negotiations. Award will be made in accordance with the evaluation criteria set forth below.
- 15. Selection Process:** Offers will be evaluated using the criteria listed in “Evaluation Approach and Factors for Award.” Failure to include all information requested may adversely affect the evaluation. A quotation that merely reiterates or promises to accomplish the requirements of the RFQ will be considered unresponsive. An offer that is orderly, sufficiently documented, and easy for the Government to understand will enable the Government to perform a thorough and fair evaluation. The Contracting Officer will begin the evaluation process by conducting a compliance review to determine the basic quotation adequacy prior to providing the offers to the evaluation team. This will determine which quotes are deemed responsive and not responsive in response to this solicitation. The Government also reserves the right to obtain additional information solely for the purpose of making a responsible determination from the offers’. Requests for responsibility information do not constitute negotiations. By submission of the offer, you agree that all items proposed (if applicable e.g., Key Personnel, subcontractors, etc.) will be utilized for the duration of the contract.

Evaluation Approach and Factors for Award: All offers will be subject to evaluation. All quotes will be evaluated under three evaluation factors

Factor I: Technical Capability

Factor II: Price

Factor III: Past Performance

Factor I: Technical Capability

Staffing. The Government will evaluate whether the offeror has submitted a staffing plan which meets the following criteria:

- Provides an adequate and qualified staffing approach which includes skill sets, backup

support, task management, key personnel, etc. to sufficiently meet all the contract terms, PWS requirements, and deliverables of this contract.

- Meets the requirements of FAR 52.219-14, Limitations of Subcontracting.
- Clearly identifies a feasible lead time for the delivery and setup of the modular office trailer that does not exceed the Government's maximum acceptable lead time of 30 calendar days from Contract Award.

Award will be made to the offeror whose offer has been determined technically acceptable and has the lowest price.

An offer will be determined “Unacceptable” if it is not rated “Acceptable” in all factors. All offers will be subject to evaluation. The rating table below depicts the evaluation approach for the Technical Capability Factor.

Rating	Description
Acceptable	Offer clearly meets the minimum requirements for the solicitation.
Unacceptable	Offer does not clearly meet the minimum requirements for the solicitation

Factor II: Price

The Government will evaluate each price offer using price analysis techniques delineated in RFO FAR 13.202. Accordingly, the analytical techniques prescribed in RFO FAR 13.203(a) maybe used singularly or in combination to ensure the price is fair and reasonable. Proposed prices evaluated as unreasonable may be grounds for eliminating an offer for competitions. As part of price evaluation, the Government will evaluate its option to extend services (see FAR Clause 52.217-8) by adding one-half of the offeror's final option period price to the offeror's total price. Thus, the offeror's total price for the purpose of evaluation will include the base period, first option, second option, third option, fourth option, and one-half of the fourth option. Offerors are required only to price the base and four options. Offerors shall not submit a price for the potential one-half-year extension of services period. The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. The evaluation of options does not obligate the Government to exercise the option(s).

Refer to RFO FAR 52.212-2 (b) regarding calculation of prices. As part of the price evaluation, the Government will evaluate the Option to Extend Services under FAR clause 52.217-8 by adding one-half of the offeror's final option price to the offeror's total price. The final award evaluation will include the base year, all option years, and the six months FAR 52.217-8 clause option.

In the event the lowest priced offeror receives an “Unacceptable” past performance evaluation rating, the Small Business Administration (SBA) will be contacted for a Certificate of Competency (COC) determination in accordance with procedures in RFO FAR 19.204.

Factor III: Past Performance

A maximum of three (3) Past Performance references is required from all offerors responding to this Solicitation. Past Performance submitted in response to this Solicitation should be recent (within the last three (3) years, but not to exceed five (5) years) and relevant to the items listed on the Price schedule and in accordance with the PWS.

If an offeror has Past Performance information available through Contractor Performance Assessment Reporting System (CPARS), the contract number, description, and contracting activity should be provided. This information will be evaluated in the absence of Past Performance questionnaires.

The Government will evaluate all received past performance references which are similar in nature, work, size, or magnitude of this requirement, and receive a rating as follows:

Rating	Description
Acceptable	Based on the offeror's past performance record, the Government has a reasonable expectation that the offeror will successfully perform the required effort, or the offeror's performance record is unknown (See below)
Unacceptable	Based on the offeror's past performance record, the Government has no reasonable expectation that the offeror will be able to successfully perform the required effort.

Note: In the case of an offeror without a record of relevant past performance or for whom information on past performance is not available or so sparse that no meaningful past performance rating can be reasonably assigned, the offeror may not be evaluated favorably or unfavorably on past performance. Therefore, the offeror must be determined to have neutral past performance. In the context of neutral, it must be considered acceptable.

In the event the lowest priced offeror receives an "Unacceptable" past performance evaluation rating, the Small Business Administration (SBA) will be contacted for a Certificate of Competency (COC) determination in accordance with procedures in FAR 15.101-2(b)(1).

The following RFO FAR and DFAR provisions are applicable to this acquisition:

- 52.202-1 Definitions
- 52.203-3 Gratuities
- 52.203-6 Restrictions on Subcontractor Sales to the Government--Alternate I
- 52.203-12 Limitation on Payments to Influence Certain Federal Transactions
- 52.203-16 Preventing Personal Conflicts of Interest
- 52.204-10 Reporting Executive Compensation and First-Tier Subcontract Awards
- 52.204-13 System for Award Management Maintenance
- 52.204-14 Service Contract Reporting Requirements
- 52.204-19 Incorporation by Reference of Representations and certifications
- 52.209-6 Protecting the Government's Interest When Subcontracting with Contractors Debarred, Suspended, or Proposed for Debarment
- 52.209-7 Information Regarding Responsibility Matters
- 52.209-9 Updates of Publicly Available Information Regarding Responsibility Matters
- 52.209-10 Prohibition on Contracting With Inverted Domestic Corporations
- 52.212-4 Contract Terms and Conditions--Commercial Products and Commercial Services
- 52.219-6 Notice of Total Small Business Set-Aside
- 52.219-8 Utilization of Small Business Concerns
- 52.219-9 Small Business Subcontracting Plan
- 52.219-14 Limitations on Subcontracting
- 52.219-28 Post-Award Small Business Program Representation
- 52.219-33 Non-Manufacturer Rule
- 52.222-3 Convict Labor
- 52.222-19 Child Labor—Cooperation with Authorities and Remedies
- 52.222-35 Equal Opportunity for Veterans
- 52.222-36 Equal Opportunity for Workers with Disabilities
- 52.222-37 Employment Reports on Veterans
- 52.222-40 Notification of Employee Rights Under the National Labor Relations Act
- 52.222-41 Service Contract Labor Standards. (Deviation 2026-O0038)
- 52.222-42 Statement of Equivalent Rates For Federal Hires
- 52.222-43 Fair Labor Standards Act and Service Contract Labor Standards—Price Adjustment (Multiple Year and Option Contracts)
- 52.222-44 Fair Labor Standards Act and Service Contract Labor Standards—Price Adjustment
- 52.222-50 Combating Trafficking in Persons
- 52.222-51 Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment—Requirements
- 52.222-53 Exemption from Application of the Service Contract Labor Standards to Contracts for Certain

Services—Requirements

52.222-54 Employment Eligibility Verification

52.222-55 Minimum Wages for Contractor Workers Under Executive Order 14026

52.222-62 Paid Sick Leave Under Executive Order 13706

52.223-23 Sustainable Products and Services

52.224-3 Privacy Training

52.226-7 Drug-Free Workplace

52.226-8 Encouraging Contractor Policies to Ban Text Messaging While Driving

52.228-5 Insurance—Work on a Government Installation

52.232-23 Assignment of Claims

52.232-33 Payment by Electronic Funds Transfer—System for Award Management

52.232-39 Unenforceability of Unauthorized Obligations

52.232-40 Providing Accelerated Payments to Small Business

52.233-1 Disputes

52.233-3 Protest After Award

52.233-4 Applicable Law for Breach of Contract Claim

52.237-2 Protection Of Government Buildings, Equipment, And Vegetation

52.237-3 Continuity of Services

52.240-90 Security Prohibitions and Exclusions Representations and Certifications

52.240-91 Security Prohibitions and Exclusions. (Deviation 2026- O0038)

52.240-92 Security Requirements

52.242-5 Payments to Small Business Subcontractors

52.244-6 Subcontracts for Commercial Products and Commercial Services. (Deviation 2026-O0038)

52.246-4 Inspection of Services-Fixed-Price

52.249-1 Termination for Convenience of the Government (Fixed-Price) (Short Form)

52.252-2 Clauses Incorporated by Reference

The following additional DFARS provisions and clauses are applicable to the acquisition:

252.201-7000 Contracting Officer's Representative

252.203-7000 Requirements Relating to Compensation of Former DoD
Officials

252.203-7002 Requirement to Inform Employees of Whistleblower Rights

252.204-7003 Control of Government Personnel Work Product

252.204-7004 Antiterrorism Awareness Training for Contractors

252.204-7009 Limitations on the Use or Disclosure of Third-Party Contractor
Reported Cyber Incident Information

252.204-7012 Safeguarding Covered Defense Information and Cyber Incident
Reporting.

252.225-7012 Preference for Certain Domestic Commodities

252.225-7048 Export-Controlled Items

252.225-7056 Prohibition Regarding Business Operations with the Maduro
Regime

252.232-7003 Electronic Submission of Payment Requests and Receiving Reports

252.232-7010 Levies on Contract Payments

252.232-7011 Payments in Support of Emergencies and Contingency Operations
252.237-7010 Prohibition on Interrogation of Detainees by Contractor Personnel
252.237-7011 Preparation History
252.237-7026 Postaward Transparency Requirements for Firms that Support
Department of Defense Audits
252.243-7002 Requests for Equitable Adjustment
252-243-7001 Pricing of Contract Modifications
252.244-7000 Subcontracts for Commercial Products or Commercial Services
252.246-7004 Safety of Facilities, Infrastructure, and Equipment for Military Operations
252.246-7008 Sources of Electronic Parts
252.247-7023 Transportation of Supplies by Sea
(End of provision)

FULL TEXT CLAUSES:

52.217-8 OPTION TO EXTEND SERVICES (NOV 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within five (5) days of contract expiration.

(End of clause)

52.217-9 OPTION TO EXTEND THE TERM OF THE CONTRACT (MAR 2000)

- (a) The Government may extend the term of this contract by written notice to the Contractor within five (5) days before contract expiration; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least ten (10) days before the contract expires. The preliminary notice does not commit the Government to an extension.
- (b) If the Government exercises this option, the extended contract shall be considered to include this option clause.
- (c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed 18 months.

(End of clause)

RFO FAR FULL TEXT PROVISIONS:

52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE (FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

<https://www.acquisition.gov/>

52.232-18 AVAILABILITY OF FUNDS (APR 1984)

Funds are not presently available for this contract. The Government's obligation under this contract is contingent upon the availability of appropriated funds from which payment for contract purposes can be made. No legal liability on the part of the Government for any payment may arise until funds are made available to the Contracting Officer for this contract and until the Contractor receives notice of such availability, to be confirmed in writing by the Contracting Officer.

(End of clause)

252.232-7006 WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)

(a) Definitions. As used in this clause—

“Department of Defense Activity Address Code (DoDAAC)” is a six-position code that uniquely identifies a unit, activity, or organization.

“Document type” means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

“Local processing office (LPO)” is the office responsible for payment certification when payment certification is done external to the entitlement system.

“Payment request” and “receiving report” are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) Electronic invoicing. The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) WAWF access. To access WAWF, the Contractor shall—

- (1) Have a designated electronic business point of contact in the System for Award Management at <https://www.sam.gov>; and
- (2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this web site.
- (d) WAWF training. The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the “Web Based Training” link on the WAWF home page at <https://wawf.eb.mil/>.
- (e) WAWF methods of document submission. Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.
- (f) WAWF payment instructions. The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:
- (1) Document type. The Contractor shall submit payment requests using the following document type(s):
- (i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.
- (ii) For fixed price line items—
- (A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.
- ☐ Invoice and Receiving Report (COMBO) **(Supplies)**
- (B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.
- ☒ Invoice as 2 in 1 **(Services)**
- (iii) For customary progress payments based on costs incurred, submit a progress payment request.
- (iv) For performance based payments, submit a performance based payment request.
- (v) For commercial financing, submit a commercial financing request.
- (2) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.
- (3) Document routing. The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving

reports in the system.

Routing Data Table*

<i>Field Name in WAWF</i>	<i>Data to be entered in WAWF</i>
Pay Official DoDAAC	HQ0490
Issue By DoDAAC	W569QE
Admin DoDAAC**	W569QE
Service Acceptor (DoDAAC)	W9124J

(4) Payment request. The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) Receiving report. The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

Acceptor: 1LT Jasmine Escobar Guanumen

Contract Specialist: SSG tameka.t.Harwood.mil@army.mil

Contracting Officer SFC McKinney, Catherine R. at catherine.r.mckinney.mil@army.mil

Contracting Officer Representative (COR): 1LT Jasmine Escobar Guanumen
Primary: at jazmine.escobarguanumen.mil@army.mil

(g) WAWF point of contact.

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact - Not Applicable.

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

52.222-41 Service Contract Labor Standards.

As prescribed in [22.1006\(a\)](#), insert the following clause:

SERVICE CONTRACT LABOR STANDARDS (AUG 2018)

(a) *Definitions.* As used in this clause—

Contractor, when this clause is used in any subcontract, shall be deemed to refer to the subcontractor,

except in the term "Government Prime Contractor."

Service employee means any person engaged in the performance of this contract other than any person employed in a bona fide executive, administrative, or professional capacity, as these terms are defined in Part 541 of Title 29, *Code of Federal Regulations*, as revised. It includes all such persons regardless of any contractual relationship that may be alleged to exist between a Contractor or subcontractor and such persons.

(b) *Applicability*. This contract is subject to the following provisions and to all other applicable provisions of [41 U.S.C. chapter 67](#), Service Contract Labor Standards, and regulations of the Secretary of Labor (29 CFR Part 4). This clause does not apply to contracts or subcontracts administratively exempted by the Secretary of Labor or exempted by [41 U.S.C. 6702](#), as interpreted in Subpart C of 29 CFR Part 4.

(c) Compensation.

(1) Each service employee employed in the performance of this contract by the Contractor or any subcontractor shall be paid not less than the minimum monetary wages and shall be furnished fringe benefits in accordance with the wages and fringe benefits determined by the Secretary of Labor, or authorized representative, as specified in any wage determination attached to this contract.

(2)

(i) If a wage determination is attached to this contract, the Contractor shall classify any class of service employee which is not listed therein and which is to be employed under the contract (*i.e.*, the work to be performed is not performed by any classification listed in the wage determination) so as to provide a reasonable relationship (*i.e.*, appropriate level of skill comparison) between such unlisted classifications and the classifications listed in the wage determination. Such conformed class of employees shall be paid the monetary wages and furnished the fringe benefits as are determined pursuant to the procedures in this paragraph (c).

(ii) This conforming procedure shall be initiated by the Contractor prior to the performance of contract work by the unlisted class of employee. The Contractor shall submit [Standard Form \(SF\) 1444](#), Request For Authorization of Additional Classification and Rate, to the Contracting Officer no later than 30 days after the unlisted class of employee performs any contract work. The Contracting Officer shall review the proposed classification and rate and promptly submit the completed [SF 1444](#) (which must include information regarding the agreement or disagreement of the employees' authorized representatives or the employees themselves together with the agency recommendation), and all pertinent information to the Wage and Hour *Division*, U.S. Department of Labor. The Wage and Hour Division will approve, modify, or disapprove the action or render a final determination in the event of disagreement within 30 days of receipt or will notify the Contracting Officer within 30 days of receipt that additional time is necessary.

(iii) The final determination of the conformance action by the Wage and Hour Division shall be transmitted to the Contracting Officer who shall promptly notify the Contractor of the action taken. Each affected employee shall be furnished by the Contractor with a written copy of such determination or it shall be posted as a part of the wage determination.

(iv)

(A) The process of establishing wage and fringe benefit rates that bear a reasonable relationship to those listed in a wage determination cannot be reduced to any single formula. The approach used may vary from wage determination to wage determination depending on the circumstances. Standard wage and salary administration practices which rank various job classifications by pay grade pursuant to point schemes or other job factors may, for example, be relied upon. Guidance may also be obtained from the way different jobs are rated under Federal pay systems (Federal Wage Board Pay System and the General Schedule) or from other wage determinations issued in the same locality. Basic to the establishment of any conformable wage rate(s) is the concept that a pay relationship should be maintained between job classifications based on the skill required and the duties performed.

(B) In the case of a contract modification, an exercise of an option, or extension of an existing contract, or in any other case where a Contractor succeeds a contract under which the classification in question was previously conformed pursuant to paragraph (c) of this clause, a new conformed wage rate and fringe benefits may be assigned to the conformed classification by indexing (*i.e.*, adjusting) the previous conformed rate and fringe benefits by an amount equal to the average (mean) percentage increase (or decrease, where appropriate) between the wages and fringe benefits specified for all classifications to be used on the contract which are listed in the current wage determination, and those specified for the corresponding classifications in the previously applicable wage determination. Where conforming actions are accomplished in accordance with this paragraph prior to the performance of contract work by the unlisted class of employees, the Contractor shall advise the Contracting Officer of the action taken but the other procedures in subdivision (c)(2)(ii) of this clause need not be followed.

(C) No employee engaged in performing work on this contract shall in any event be paid less than the currently applicable minimum wage specified under section 6(a)(1) of the Fair Labor Standards Act of 1938, as amended.

(iv) The wage rate and fringe benefits finally determined under this paragraph (c)(2) of this clause shall be paid to all employees performing in the classification from the first day on which contract work is performed by them in the classification. Failure to pay the unlisted employees the compensation agreed upon by the interested parties and/or finally determined by the Wage and Hour Division retroactive to the date such class of employees commenced contract work shall be a violation of the Service Contract Labor Standards statute and this contract.

(v) Upon discovery of failure to comply with paragraph (c)(2) of this clause, the Wage and Hour Division shall make a final determination of conformed classification, wage rate, and/or fringe benefits which shall be retroactive to the date such class or classes of employees commenced contract work.

(3) *Adjustment of compensation.* If the term of this contract is more than 1 year, the minimum monetary wages and fringe benefits required to be paid or furnished thereunder to service employees under this contract shall be subject to adjustment after 1 year and not less often than once every 2 years, under wage determinations issued by the Wage and Hour Division.

(d) *Obligation to furnish fringe benefits.* The Contractor or subcontractor may discharge the obligation to furnish fringe benefits specified in the attachment or determined under paragraph (c)(2) of this clause by furnishing equivalent combinations of bona fide fringe benefits, or by making equivalent or differential cash payments, only in accordance with Subpart D of 29 CFR Part 4.

(e) *Minimum wage.* In the absence of a minimum wage attachment for this contract, neither the Contractor nor any subcontractor under this contract shall pay any person performing work under this contract (regardless of whether the person is a service employee) less than the minimum wage specified by section 6(a)(1) of the Fair Labor Standards Act of 1938. Nothing in this clause shall relieve the Contractor or any subcontractor of any other obligation under law or contract for payment of a higher wage to any employee.

(f) *Successor contracts.* If this contract succeeds a contract subject to the Service Contract Labor Standards statute under which substantially the same services were furnished in the same locality and service employees were paid wages and fringe benefits provided for in a collective bargaining agreement, in the absence of the minimum wage attachment for this contract setting forth such collectively bargained wage rates and fringe benefits, neither the Contractor nor any subcontractor under this contract shall pay any service employee performing any of the contract work (regardless of whether or not such employee was employed under the predecessor contract), less than the wages and fringe benefits provided for in such collective bargaining agreement, to which such employee would have been entitled if employed under the predecessor contract, including accrued wages and fringe benefits and any prospective increases in wages and fringe benefits provided for under such agreement. No Contractor or subcontractor under this contract may be relieved of the foregoing obligation unless the limitations of 29 CFR [4.1](#) b(b) apply or unless the Secretary of Labor or the Secretary's authorized representative finds, after a hearing as provided in 29 CFR [4.10](#) that the wages and/or fringe benefits provided for in such agreement are substantially at variance with those which prevail for services of a character similar in the locality, or determines, as provided in 29 CFR [4.11](#), that the collective bargaining agreement applicable to service employees employed under the predecessor contract was not entered into as a result of arm's length negotiations. Where it is found in accordance with the review procedures provided in 29 CFR [4.10](#) and/or [4.11](#) and Parts 6 and 8 that some or all of the wages and/or fringe benefits contained in a predecessor Contractor's collective bargaining agreement are substantially at variance with those which prevail for services of a character similar in the locality, and/or that the collective bargaining agreement applicable to service employees employed under the predecessor contract was not entered into as a result of arm's length negotiations, the Department will issue a new or revised wage determination setting forth the applicable wage rates and fringe benefits. Such determination shall be made part of the contract or subcontract, in accordance with the decision of the Administrator, the Administrative Law Judge, or the Administrative Review Board, as the case may be, irrespective of whether such issuance occurs prior to or after the award of a contract or subcontract (53 Comp. Gen. 401 (1973)). In the case of a wage determination issued solely as a result of a finding of substantial variance, such determination shall be effective as of the date of the final administrative decision.

(g) *Notification to employees.* The Contractor and any subcontractor under this contract shall notify each service employee commencing work on this contract of the minimum monetary wage and any fringe benefits required to be paid pursuant to this contract, or shall post the wage determination attached to this contract. The poster provided by the Department of Labor (Publication WH 1313) shall be posted in a prominent and accessible place at the work site. Failure to comply with this requirement is a violation of [41 U.S.C. 6703](#) and of this contract.

(h) *Safe and sanitary working conditions.* The Contractor or subcontractor shall not permit any part of the services called for by this contract to be performed in buildings or surroundings or under working conditions provided by or under the control or supervision of the Contractor or subcontractor which are unsanitary, hazardous, or dangerous to the health or safety of the service employees. The Contractor or subcontractor shall comply with the safety and health standards applied under 29 CFR Part 1925.

(i) *Records.*

(1) The Contractor and each subcontractor performing work subject to the Service Contract Labor Standards statute shall make and maintain for 3 years from the completion of the work, and make them available for inspection and transcription by authorized representatives of the Wage and Hour *Division*, a record of the following:

(i) For each employee subject to the Service Contract Labor Standards statute-

(A) Name and address and social security number;

(B) Correct work classification or classifications, rate or rates of monetary wages paid and fringe benefits provided, rate or rates of payments in lieu of fringe benefits, and total daily and weekly compensation;

(C) Daily and weekly hours worked by each employee; and

(D) Any deductions, rebates, or refunds from the total daily or weekly compensation of each employee.

(ii) For those classes of service employees not included in any wage determination attached to this contract, wage rates or fringe benefits determined by the interested parties or by the Administrator or authorized representative under the terms of paragraph (c) of this clause. A copy of the report required by subdivision (c)(2)(ii) of this clause will fulfill this requirement.

(iii) Any list of the predecessor Contractor's employees which had been furnished to the Contractor as prescribed by paragraph (n) of this clause.

(2) The Contractor shall also make available a copy of this contract for inspection or transcription by authorized representatives of the Wage and Hour Division.

(3) Failure to make and maintain or to make available these records for inspection and transcription shall be a violation of the regulations and this contract, and in the case of failure to produce these records, the Contracting Officer, upon direction of the Department of Labor and notification to the Contractor, shall take action to cause suspension of any further payment or advance of funds until the violation ceases.

(4) The Contractor shall permit authorized representatives of the Wage and Hour Division to conduct interviews with employees at the work site during normal working hours.

(j) *Pay periods.* The Contractor shall unconditionally pay to each employee subject to the Service Contract Labor Standards statute all wages due free and clear and without subsequent deduction (except as otherwise provided by law or regulations, 29 CFR Part 4), rebate, or kickback on any account. These payments shall be made no later than one pay period following the end of the regular pay period in which the wages were earned or accrued. A pay period under this statute may not be of any duration longer than semi-monthly.

(k) *Withholding of payments and termination of contract.* The Contracting Officer shall withhold or cause

to be withheld from the Government Prime Contractor under this or any other Government contract with the Prime Contractor such sums as an appropriate official of the Department of Labor requests or such sums as the Contracting Officer decides may be necessary to pay underpaid employees employed by the Contractor or subcontractor. In the event of failure to pay any employees subject to the Service Contract Labor Standards statute all or part of the wages or fringe benefits due under the Service Contract Labor Standards statute, the Contracting Officer may, after authorization or by direction of the Department of Labor and written notification to the Contractor, take action to cause suspension of any further payment or advance of funds until such violations have ceased. Additionally, any failure to comply with the requirements of this clause may be grounds for termination of the right to proceed with the contract work.

In such event, the Government may enter into other contracts or arrangements for completion of the work, charging the Contractor in default with any additional cost.

(l) *Subcontracts*. The Contractor agrees to insert this clause in all subcontracts subject to the Service Contract Labor Standards statute.

(m) *Collective bargaining agreements applicable to service employees*. If wages to be paid or fringe benefits to be furnished any service employees employed by the Government Prime Contractor or any subcontractor under the contract are provided for in a collective bargaining agreement which is or will be effective during any period in which the contract is being performed, the Government Prime Contractor shall report such fact to the Contracting Officer, together with full information as to the application and accrual of such wages and fringe benefits, including any prospective increases, to service employees engaged in work on the contract, and a copy of the collective bargaining agreement. Such report shall be made upon commencing performance of the contract, in the case of collective bargaining agreements effective at such time, and in the case of such agreements or provisions or amendments thereof effective at a later time during the period of contract performance such agreements shall be reported promptly after negotiation thereof.

(n) *Seniority list*. Not less than 10 days prior to completion of any contract being performed at a Federal facility where service employees may be retained in the performance of the succeeding contract and subject to a wage determination which contains vacation or other benefit provisions based upon length of service with a Contractor (predecessor) or successor (29 CFR 4.173), the incumbent Prime Contractor shall furnish the Contracting Officer a certified list of the names of all service employees on the Contractor's or subcontractor's payroll during the last month of contract performance. Such list shall also contain anniversary dates of employment on the contract either with the current or predecessor Contractors of each such service employee. The Contracting Officer shall turn over such list to the successor Contractor at the commencement of the succeeding contract.

(o) *Rulings and interpretations*. Rulings and interpretations of the Service Contract Labor Standards statute are contained in Regulations, 29 CFR Part 4.

(p) Contractor's certification.

(1) By entering into this contract, the Contractor (and officials thereof) certifies that neither it nor any person or firm who has a substantial interest in the Contractor's firm is a person or firm ineligible to be awarded Government contracts by virtue of the sanctions imposed under [41 U.S.C. 6706](#).

(2) No part of this contract shall be subcontracted to any person or firm ineligible for award of a

Government contract under [41 U.S.C. 6706](#).

(3) The penalty for making false statements is prescribed in the U.S. Criminal Code, [18 U.S.C. 1001](#).

(q) *Variations, tolerances, and exemptions involving employment.* Notwithstanding any of the provisions in paragraphs (b) through (o) of this clause, the following employees may be employed in accordance with the following variations, tolerances, and exemptions, which the Secretary of Labor, pursuant to [41 U.S.C. 6707](#) prior to its amendment by Pub.L.92-473, found to be necessary and proper in the public interest or to avoid serious impairment of the conduct of Government business:

(1) Apprentices, student-learners, and workers whose earning capacity is impaired by age, physical or mental deficiency, or injury may be employed at wages lower than the minimum wages otherwise required by [41 U.S.C. 6703\(1\)](#) without diminishing any fringe benefits or cash payments in lieu thereof required under [41 U.S.C. 6703\(2\)](#), in accordance with the conditions and procedures prescribed for the employment of apprentices, student-learners, persons with disabilities, and disabled clients of work centers under section 14 of the Fair Labor Standards Act of 1938, in the regulations issued by the Administrator (29 CFR parts 520, 521, 524, and 525).

(2) The Administrator will issue certificates under the statute for the employment of apprentices, student-learners, persons with disabilities, or disabled clients of work centers not subject to the Fair Labor Standards Act of 1938, or subject to different minimum rates of pay under the two statutes, authorizing appropriate rates of minimum wages (but without changing requirements concerning fringe benefits or supplementary cash payments in lieu thereof), applying procedures prescribed by the applicable regulations issued under the Fair Labor Standards Act of 1938 (29 CFR parts 520, 521, 524, and 525).

(3) The Administrator will also withdraw, annul, or cancel such certificates in accordance with the regulations in 29 CFR parts 525 and 528.

(r) *Apprentices.* Apprentices will be permitted to work at less than the predetermined rate for the work they perform when they are employed and individually registered in a bona fide apprenticeship program registered with a State Apprenticeship Agency which is recognized by the U.S. Department of Labor, or if no such recognized agency exists in a State, under a program registered with the Office of Apprenticeship Training, Employer, and Labor Services (OATELS), U.S. Department of Labor. Any employee who is not registered as an apprentice in an approved program shall be paid the wage rate and fringe benefits contained in the applicable wage determination for the journeyman classification of work actually performed. The wage rates paid apprentices shall not be less than the wage rate for their level of progress set forth in the registered program, expressed as the appropriate percentage of the journeyman's rate contained in the applicable wage determination. The allowable ratio of apprentices to journeymen employed on the contract work in any craft classification shall not be greater than the ratio permitted to the Contractor as to his entire work force under the registered program.

(s) *Tips.* An employee engaged in an occupation in which the employee customarily and regularly receives more than \$30 a month in tips may have the amount of these tips credited by the employer against the minimum wage required by [41 U.S.C. 6703\(1\)](#), in accordance with section 3(m) of the Fair Labor Standards Act and Regulations, 29 CFR Part 531. However, the amount of credit shall not exceed \$1.34 per hour beginning January 1, 1981. To use this provision-

(1) The employer must inform tipped employees about this tip credit allowance before the credit is utilized;

- (2) The employees must be allowed to retain all tips (individually or through a pooling arrangement and regardless of whether the employer elects to take a credit for tips received);
- (3) The employer must be able to show by records that the employee receives at least the applicable Service Contract Labor Standards minimum wage through the combination of direct wages and tip credit; and
- (4) The use of such tip credit must have been permitted under any predecessor collective bargaining agreement applicable by virtue of [41 U.S.C. 6707\(c\)](#).
- (t) *Disputes concerning labor standards.* The U.S. Department of Labor has set forth in 29 CFR parts 4, 6, and 8 procedures for resolving disputes concerning labor standards requirements. Such disputes shall be resolved in accordance with those procedures and not the Disputes clause of this contract. Disputes within the meaning of this clause include disputes between the Contractor (or any of its subcontractors) and the contracting agency, the U.S. Department of Labor, or the employees or their representatives.

(End of clause)

Fill-in Section

52.203-11 CERTIFICATION AND DISCLOSURE REGARDING PAYMENTS TO INFLUENCE CERTAIN FEDERAL TRANSACTIONS (SEP 2007)

(a) Definitions. As used in this provision-- ``Lobbying contact" has the meaning provided at 2 U.S.C. 1602(8). The terms ``agency," ``influencing or attempting to influence," ``officer or employee of an agency," ``person," ``reasonable compensation," and ``regularly employed" are defined in the FAR clause of this solicitation entitled ``Limitation on Payments to Influence Certain Federal Transactions" (52.203-12).

(b) Prohibition. The prohibition and exceptions contained in the FAR clause of this solicitation entitled ``Limitation on Payments to Influence Certain Federal Transactions" (52.203-12) are hereby incorporated by reference in this provision.

(c) Certification. The offeror, by signing its offer, hereby certifies to the best of its knowledge and belief that no Federal appropriated funds have been paid or will be paid to any person for influencing or attempting to influence an officer or employee of any agency, a Member of Congress, an officer or employee of Congress, or an employee of a Member of Congress on its behalf in connection with the awarding of this contract.

(d) Disclosure. If any registrants under the Lobbying Disclosure Act of 1995 have made a lobbying contact on behalf of the offeror with respect to this contract, the offeror shall complete and submit, with its offer, OMB Standard Form LLL, Disclosure of Lobbying Activities, to provide the name of the registrants. The offeror need not report regularly employed officers or employees of the offeror to whom payments of reasonable compensation were made.

(e) Penalty. Submission of this certification and disclosure is a prerequisite for making or entering into this contract imposed by 31 U.S.C. 1352. Any person who makes an expenditure prohibited under this provision or who fails to file or amend the disclosure required to be filed or amended by this provision, shall be subject to a civil penalty of not less than \$10,000, and not more than \$100,000, for each such failure.

(End of provision)

(a) Definitions. As used in this provision-

(b) Prohibition.

(1) Section 889(a)(1)(A) of the John S. McCain National Defense Authorization Act for Fiscal Year

2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2019, from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. Nothing in the prohibition shall be construed to--

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(2) Section 889(a)(1)(B) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2020, from entering into a contract or extending or renewing a contract with an entity that uses any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. This prohibition applies to the use of covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract. Nothing in the prohibition shall be construed to--

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(c) Procedures. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered telecommunications equipment or services."

(d) Representations. The Offeror represents that--

(1) It [☐] will, [☐] will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation. The Offeror shall provide the additional disclosure information required at paragraph (e)(1) of this section if the Offeror responds "will" in paragraph (d)(1) of this section; and

(2) After conducting a reasonable inquiry, for purposes of this representation, the Offeror represents that--

It [☐] does, [☐] does not use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services. The Offeror shall provide the additional disclosure information required at paragraph (e)(2) of this section if the Offeror responds "does" in paragraph (d)(2) of this section.

(e) Disclosures.

(1) Disclosure for the representation in paragraph (d)(1) of this provision. If the Offeror has responded "will" in the representation in paragraph (d)(1) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment--

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the original equipment manufacturer (OEM) or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(ii) For covered services--

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the Product Service Code (PSC) of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(2) Disclosure for the representation in paragraph (d)(2) of this provision. If the Offeror has responded "does" in the representation in paragraph (d)(2) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment--

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant

to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(ii) For covered services--

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the PSC of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(End of provision)

**** PLEASE PROVIDE THE FOLLOWING INFORMATION WITH YOUR QUOTE****

COMPANY NAME: _____

UNIQUE ENTITY IDENTIFIER: _____

CAGE CODE: _____

POINT OF CONTACT NAME: _____

POINT OF CONTACT PHONE: _____

POINT OF CONTACT EMAIL: _____

Registered in SAM: Yes _____ No _____

*Make sure your status is ACTIVE since no award will be made on an expired registration.

Registered in Wide Area Workflow (WAWF): Yes _____ No _____

*WAWF will not work when the SAM registration is inactive. This will cause payment delays!

Section 889 Compliant & Listed in Reps and Certs in SAM: Yes_____ No_____